

as conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Citation]. Such conduct has been described as ‘[having] the character of outrage frequently associated with crime.’” (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050). “[I]n cases involving conduct performed without intent to harm, a finding of ‘malice’ for punitive purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amounted to ‘despicable conduct’ and that such despicable conduct was carried on with a ‘willful and conscious disregard’ of the rights or safety of others.” (See *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704 (*College Hospital*)).

Defendant COE contends the proposed amendment does not allege facts sufficient to support a claim for punitive damages because the factual basis for plaintiffs’ allegation that defendant COE was aware of the probable dangerous consequences of its conduct are two lawsuits filed by different plaintiffs involving allegations of death/ injury arising from equipment manufactured by COE. Defendant COE argues that even if these prior lawsuits placed it on notice that allegations have been made, they are only unproven allegations.

Regardless of whether the allegations made in the other prior lawsuits are ultimately proven true or not, plaintiffs’ allegation that defendant COE was aware of these prior lawsuits and the allegations contained therein is sufficient to allege here in this action that defendant COE was aware of the probable dangerous consequences of not including a guard mechanism. The proposed amended pleading also alleges a willful and deliberate failure to avoid such consequences. (See ¶¶21 – 22 of the proposed amended pleading). Although there are some decisions in which the court determined conduct was not despicable as a matter of law following the submission of evidence (see *Lackner, supra*, 135 Cal.App.4th at p. 1213), the court declines to make such a determination based solely upon a pleading or, in this instance, a proposed pleading.

Defendant COE makes no other argument concerning prejudice from the proposed amended pleading.

IV. CONCLUSION

Based on the foregoing, the plaintiffs’ motion for leave to amend the complaint is GRANTED. Plaintiffs shall file the proposed First Amended Complaint within twenty (20) days of this Order. The Court will prepare the Order.

Calendar Lines # 5
Case Name UHG I LLC vs Travis Fong
Case No. 25CV463382
Motion for Order to Deem Admissions Admitted
I. BACKGROUND
Before the court is Plaintiff UHG I LLC (“UHG”) motion for requests for admissions (“RFA”) to be deemed admitted against Defendant Travis Fong that was filed on October 20, 2025. No proof of service of the motion to the defendant was submitted.
Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, including: Plaintiff's notice of motion, memorandum of points and authorities in support of UHG's motion; Declaration of Jomari Lucero in support and Exhibit A, and proof of service (totaling 10 pages), as well as the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOALTION

Plaintiff UHG's motion was not accompanied by a proof of service to defendant Travis Fong. Code of Civil Procedure section 1005 and California Rule of Court rule 3.1300 specifically provides that a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. Plaintiff's moving papers provide a proof of service of the request for admissions that were served on July 7, 2025, indicating mail service. However, the moving papers for an order to deem admissions admitted was not accompanied by a proof of service. The Court cannot consider the merits of the motion absent proof of service of the moving papers. The Court notes that no opposition papers were filed, but absent a filing of timely proof of service, the Court cannot consider that the defendant deemed consent to granting of the motion.

B. REQUEST FOR ADMISSIONS

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.
- (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).

III. ANALYSIS

On July 7, 2025, Plaintiff served Defendant Travis Fong with initial discovery, including a request for admissions.(Exhibit A; Declaration of Lucero). The plaintiff provides a proof of service of the RFA on that same date via mail service. (*Id.*). Per Plaintiff, responses were due on August 26, 2025. (Declaration of Lucero). No responses were produced and the plaintiff sent a meet-and-confer letter. (Exhibit B; Declaration of Lucero).

Plaintiff field this motion for an Order to Deem Admissions Admitted. However, as noted above in the procedural violation portion, the plaintiff did not file a proof of service of this motion as required under Code of Civil

Procedure section 1005 or Rule of Court, rule 3.1300. No opposition papers were filed, but given the failure to file a proof of service of the motion, the Court cannot consider the merits of the motion.

IV. CONCLUSION

Based on the foregoing, the plaintiff's motion is DENIED. The Court will prepare the formal Order.

Calendar Lines # 6

Case Name Daniel Kelly vs Ford Motor Company et al

Case No. 25CV467382

Petition to Compel Arbitration

I. BACKGROUND

On or around January 21, 2024, Plaintiff Daniel Howard Kelly purchased a 2021 Ford Bronco, vehicle identification number: 1FMDE5FPXMLA20762 ("Subject Vehicle") from Defendant Palm Springs Ford ("Dealership") and entered into a warrant contract with the defendant. (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47). Plaintiff alleges that Dealership "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 49). Plaintiff sued Dealership and Ford Motor Company in May 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Defendant Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

II. LEGAL STANDARD

Under the Federal Arbitration Act ("FAA"), the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

Pursuant to Code of Civil Procedure section 1281.2: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).